

CHAPTER 21.

An Act to make further provision with respect to the number and duties of Lords of Appeal in Ordinary, and with respect to the constitution of the Court of Appeal and the Judicial Committee of the Privy Council.
[15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. His Majesty may appoint two Lords of Appeal in Ordinary under section six of the Appellate Jurisdiction Act, 1876, in addition to the four Lords of Appeal in Ordinary whom he may appoint under sections six and fourteen of that Act and the law relating to the appointment and qualifications of Lords of Appeal under the said section six, and to their duties and tenure of office, their rank, salary, and pension, and otherwise, shall apply to any Lord of Appeal appointed under this section : Provided that the sum paid in salaries in any one year to the Lords of Appeal in Ordinary appointed under this Act shall in no case exceed twelve thousand pounds.

Additional
Lords of
Appeal.
39 & 40 Vict.
c. 59.

2. Every Lord of Appeal in Ordinary, whether appointed before or after the passing of this Act, who at the date of his appointment would have been qualified to be appointed an ordinary judge of the Court of Appeal, or who at that date was a judge of that Court shall be an ex-officio judge of that Court, but no such Lord of Appeal shall be required to sit and act as a judge of the Court of Appeal unless upon the request of the Lord Chancellor he consents so to do, and whilst so sitting and acting he shall rank therein according to his precedence as a peer.

Lords of
Appeal to be
ex-officio
judges of
Court of
Appeal.

3.—(1) The maximum number of persons (being, or having been, judges in certain parts of His Majesty's dominions) who may become members of the Judicial Committee of the Privy Council by reason of the Judicial Committee Amendment Act, 1895, as amended by any subsequent enactment shall be increased from five to seven, and accordingly seven shall be substituted for five in subsection (2) of section one of that Act.

Provisions as
to colonial
judges be-
coming mem-
bers of the
Judicial Com-
mittee.
58 & 59 Vict.
c. 44.

(2) Section one of the said Act shall have effect as if the persons named therein included any person being or having been Chief Justice or a Judge of the Supreme Court of South Africa.

(3) His Majesty may, by Order in Council, regulate the order in which the persons qualified to become members of the Judicial Committee under the said Act as so amended, are to become members thereof, so as to secure, as far as possible, an

equal distribution of such members amongst the various parts of His Majesty's dominions to which the Act so amended relates.

(4) The enactments mentioned in the schedule to this Act are hereby repealed to the extent mentioned in the third column of that schedule, and in the schedule to the Appellate Jurisdiction Act, 1908, for the words "Cape of Good Hope, Natal, Transvaal, Orange River Colony" there shall be substituted the words "the Union of South Africa."

Short title. **4.** This Act may be cited as the Appellate Jurisdiction Act, 1913.

SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
58 & 59 Vict. c. 44.	The Judicial Committee Amendment Act, 1895.	In section one, the words "or " either of the South African " Colonies mentioned in the " said schedule." In the schedule, the words "South African Colonies, " Cape of Good Hope, Natal."
8 Edw. 7. c. 51	The Appellate Jurisdiction Act, 1908.	Subsection (2) of section three.

CHAPTER 22.

An Act to grant Money for the purpose of certain Local Loans out of the Local Loans Fund, and for other purposes relating to Local Loans. [15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Grants for
public works.

1.—(1) For the purpose of local loans, there may be issued by the National Debt Commissioners the following sums, namely:—

(a) For the purpose of loans by the Public Works Loan Commissioners, any sum or sums not exceeding in the whole the sum of six million pounds: